

STATE OF IOWA
KIM REYNOLDS
GOVERNOR

June 2, 2025

The Honorable Paul Pate
Secretary of State of Iowa
State Capitol
Des Moines, Iowa 50319

Dear Mr. Secretary,

I hereby transmit:

House File 954, an Act relating to the conduct of elections, and including effective date and retroactive applicability provisions.

The above House File is hereby approved on this date.

Sincerely,

A handwritten signature in black ink that reads "Kim Reynolds". The signature is stylized, with the first letters of the first and last names being large and prominent.

Kim Reynolds
Governor of Iowa



House File 954

AN ACT
RELATING TO THE CONDUCT OF ELECTIONS, AND INCLUDING EFFECTIVE
DATE AND RETROACTIVE APPLICABILITY PROVISIONS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF IOWA:

DIVISION I
ADMINISTRATION OF ELECTIONS

Section 1. Section 9E.6, subsection 3, paragraph b, subparagraph (1), Code 2025, is amended to read as follows:

(1) The state commissioner of elections shall, upon the written request of a party to the contest, certify the eligibility of a program participant to vote or the validity of a program participant's absentee ballot. A written request submitted under this paragraph "b" must contain the ~~voter~~ voter's four-digit personal identification number affixed to the program participant's absentee ballot.

Sec. 2. Section 39.2, subsection 1, paragraph a, Code 2025, is amended to read as follows:

a. All special elections which are authorized or required by law, unless the applicable law otherwise requires, shall be held on Tuesday. A special election shall not be held on

the first, second, third, and fourth Tuesdays preceding and following the primary and the general elections or on the first, second, and third Tuesdays preceding and following a city or school election.

Sec. 3. Section 43.18, subsection 9, Code 2025, is amended to read as follows:

9. A statement that the candidate is aware that the candidate is disqualified from holding office if the candidate has been convicted of a felony or other infamous crime and the candidate's rights have not been restored by the governor or by the president of the United States. This subsection does not apply to candidates for federal office. The state commissioner shall prescribe a separate affidavit of candidacy for candidates for federal office.

Sec. 4. Section 43.67, subsection 2, paragraph i, Code 2025, is amended to read as follows:

i. A statement that the candidate is aware that the candidate is disqualified from holding office if the candidate has been convicted of a felony or other infamous crime and the candidate's rights have not been restored by the governor or by the president of the United States. This paragraph does not apply to candidates for federal office. The state commissioner shall prescribe a separate affidavit of candidacy for candidates for federal office.

Sec. 5. Section 44.3, subsection 2, paragraph i, Code 2025, is amended to read as follows:

i. A statement that the candidate is aware that the candidate is disqualified from holding office if the candidate has been convicted of a felony or other infamous crime and the candidate's rights have not been restored by the governor or by the president of the United States. This paragraph does not apply to candidates for federal office. The state commissioner shall prescribe a separate affidavit of candidacy for candidates for federal office.

Sec. 6. Section 45.3, subsection 9, Code 2025, is amended to read as follows:

9. A statement that the candidate is aware that the candidate is disqualified from holding office if the candidate

has been convicted of a felony or other infamous crime and the candidate's rights have not been restored by the governor or by the president of the United States. This subsection does not apply to candidates for federal office. The state commissioner shall prescribe a separate affidavit of candidacy for candidates for federal office.

Sec. 7. Section 47.1, subsections 1, 6, 7, and 8, Code 2025, are amended to read as follows:

1. The secretary of state is designated as the state commissioner of elections and shall supervise the activities of the county commissioners of elections. There is established within the office of the secretary of state a division of elections which shall be under the direction of the state commissioner of elections. The state commissioner of elections may appoint a person to be in charge of the division of elections who shall perform the duties assigned by the state commissioner of elections. The state commissioner of elections shall prescribe uniform election practices and procedures, shall prescribe the necessary forms required for the conduct of elections, shall assign a number to each proposed constitutional amendment and statewide public measure for identification purposes, and shall adopt rules, pursuant to chapter 17A, to carry out this section. The state commissioner of elections may issue guidance and directives that ~~is~~ are not subject to the rulemaking process to clarify election laws and rules.

6. The state commissioner may, at the state commissioner's discretion, examine the records of a commissioner to evaluate complaints and to ensure compliance with the provisions of chapters 39 through 53. This examination shall include but not be limited to assessments conducted or authorized by private or government entities to evaluate a county's security readiness for elections-related technology or physical facilities. The state commissioner shall adopt rules pursuant to chapter 17A to require a commissioner to provide written explanations related to examinations conducted pursuant to this subsection. Any information that is requested by or in the possession of the state commissioner pursuant to this chapter shall not lose its confidential status pursuant to section 22.7, ~~subsection 50.~~

7. The state commissioner may share information a county provides to an appropriate government agency to safeguard against cybersecurity or physical threats. A county commissioner of elections shall notify the state commissioner when the county commissioner's office is involved in physical or cybersecurity assessments performed by a federal or state agency or other entity.

8. The state commissioner may adopt rules pursuant to chapter 17A to create minimum security protocols applicable to county commissioners of elections and vendors utilized by the state commissioner and county commissioners of elections. If a county fails to adhere to these protocols, the state commissioner may limit access to the statewide voter registration system. If a vendor fails to adhere to these protocols, the state commissioner may limit access to election infrastructure.

Sec. 8. Section 47.2, subsection 1, Code 2025, is amended to read as follows:

1. The county auditor of each county is designated as the county commissioner of elections in each county. The county commissioner of elections shall conduct voter registration pursuant to chapter 48A and conduct all elections within the county. The county commissioner of elections does not possess home rule powers with respect to the exercise of powers or duties related to the conduct of elections prescribed by statute or rule, or guidance or directives issued pursuant to section 47.1.

Sec. 9. Section 48A.26A, subsection 2, Code 2025, is amended to read as follows:

2. If the acknowledgment is returned as undeliverable by the postal service, the commissioner shall attempt to contact the voter by forwardable mail. If a response is not received from the voter within fourteen days after the notice is mailed, the commissioner shall change the status of the registration to inactive status and shall immediately notify the state registrar of voters, the county sheriff, and the county attorney.

Sec. 10. Section 48A.37, subsection 1, Code 2025, is amended to read as follows:

1. Voter registration records, including voter registration forms, shall be maintained in an electronic medium on the statewide voter registration system. A history of local election participation shall be maintained as part of the electronic record for at least two general, primary, school, and city elections. Absentee voting shall be recorded for the previous two general and primary elections. After each election, the county commissioner shall update telephone numbers provided by registered voters pursuant to section 49.77.

Sec. 11. NEW SECTION. 49.29 Electronic election register and poll book.

1. The commissioner may use an electronic election register or election poll book in lieu of a paper register or poll book if the electronic election register or poll book is a product that has been certified for use in this state by the state commissioner.

2. The state commissioner shall adopt rules pursuant to chapter 17A for certification standards for electronic election registers and election poll books. The certification standards must include operational and security standards.

Sec. 12. Section 50.12, Code 2025, is amended to read as follows:

50.12 Return and preservation of ballots.

Immediately after making the proclamation, and before separating, the board members of each precinct in which votes have been received by paper ballot shall enclose in an envelope or other container all ballots which have been counted by them, except those endorsed "Rejected as double", "Defective", or "Objected to", and securely seal the envelope. The signatures of all board members of the precinct shall be placed across the seal or the opening of the container so that it cannot be opened without breaking the seal. The precinct election officials shall return all the ballots to the commissioner, who shall carefully preserve them for ~~six~~ twenty-two months. ~~Ballots from elections for federal offices shall be preserved for twenty-two months.~~ The sealed packages containing voted ballots shall be opened only for an official recount authorized by section 50.48, 50.49, or 50.50, for an election contest

held pursuant to chapters 57 through 62, to conduct an audit pursuant to section 50.51, or to destroy the ballots pursuant to section 50.19.

Sec. 13. Section 50.19, subsection 1, Code 2025, is amended to read as follows:

1. The commissioner may destroy precinct election registers, the declarations of eligibility signed by voters, and other material pertaining to any election in which federal offices are not on the ballot, except the tally lists and abstracts of votes which have not been electronically recorded, ~~six~~ twenty-two months after the election if a contest is not pending. If a contest is pending, all election materials shall be preserved until final determination of the contest or until twenty-two months after the election, whichever is later.

Before destroying the election registers and declarations of eligibility, the commissioner shall prepare records as necessary to permit compliance with chapter 48A, subchapter V. ~~Nomination papers for primary election candidates for state and county offices shall be destroyed ten days before the general election, if a contest is not pending.~~

Sec. 14. Section 53.2, subsection 4, paragraph c, Code 2025, is amended to read as follows:

c. For purposes of this subsection, "*voter verification number*" means the registered voter's driver's license number or nonoperator's identification card number assigned to the voter by the department of transportation or the registered voter's four-digit personal identification number assigned to the voter by the state commissioner pursuant to section ~~47.7~~ 48A.10A, subsection 2 1.

Sec. 15. Section 53.10, subsection 2, paragraph b, Code 2025, is amended to read as follows:

b. For purposes of this subsection, "*voter verification number*" means the registered voter's driver's license number or nonoperator's identification card number assigned to the voter by the department of transportation or the registered voter's four-digit personal identification number assigned to the voter by the state commissioner pursuant to section ~~47.7~~ 48A.10A, subsection 2 1.

Sec. 16. Section 53.23, subsection 3, paragraph a, Code

2025, is amended to read as follows:

a. The commissioner shall set ~~the~~ a convening time for the board of no later than 9:00 a.m. on election day, allowing a reasonable amount of time to complete counting all absentee ballots by 10:00 p.m. on election day.

Sec. 17. Section 54.5, subsection 3, Code 2025, is amended to read as follows:

3. Each elector nominee and alternate elector nominee of a political party or group of petitioners shall execute the following pledge on a form prescribed by the state commissioner, which shall accompany the submission of the corresponding names to the state commissioner:

If selected for the position of elector, I agree to serve and to mark my ballots for president and vice president for the nominees for those offices of the party (or group of petitioners) that nominated me.

Sec. 18. Section 54.5, Code 2025, is amended by adding the following new subsection:

NEW SUBSECTION. 5. An objection to a nomination made under this section on any grounds other than the legal sufficiency of the certificate of nomination shall not be sustained. The certificate of nomination shall be presumed valid.

Sec. 19. Section 384.19, subsection 1, Code 2025, is amended to read as follows:

1. Within a period of ten days after the final date that a budget or amended budget may be certified to the county auditor, persons affected by the budget may file a written protest with the county auditor specifying their objections to the budget or any part of it. A protest must be signed by registered voters equal in number to one-fourth of one percent of the ~~votes cast for governor in the last preceding general election in the city, but the number shall not be less than ten persons and the number need not be more than one hundred persons~~ population of the city according to the most recent federal decennial census or special census, whichever is later.

DIVISION II

RANKED CHOICE VOTING

Sec. 20. Section 49.93, Code 2025, is amended to read as follows:

49.93 Number of votes for each office.

1. For an office to which one person is to be elected, a voter shall not vote for more than one candidate. If two or more persons are to be elected to an office, the voter shall vote for no more than the number of persons to be elected. If a person votes for more than the permitted number of candidates, the vote for that office shall not count. Valid votes cast on the rest of the ballot shall be counted.

2. a. An election in this state shall not be conducted using ranked choice voting or instant runoff voting.

b. For the purposes of this section, *"ranked choice voting"* or *"instant runoff voting"* means a method of casting and tabulating votes in which a voter ranks candidates in order of preference, tabulation of ballots proceeds in rounds such that in each round either a candidate is elected or the candidate receiving the fewest votes is defeated, votes are transferred from elected or defeated candidates to a voter's next-ranked candidate in order of preference, and tabulation ends when a candidate receives the majority of votes cast or the number of candidates elected equals the number of offices to be filled, as applicable.

Sec. 21. EFFECTIVE DATE. This division of this Act takes effect January 1, 2026.

DIVISION III

PERSONS PERMITTED IN VOTING BOOTHS

Sec. 22. Section 49.88, subsection 3, Code 2025, is amended to read as follows:

3. A person standing for election on the ballot before a voter ~~shall not occupy~~ commits a violation of this section by occupying the voting booth with the voter, including to assist the voter.

Sec. 23. Section 49.90, Code 2025, is amended to read as follows:

49.90 Assisting voter.

1. Any voter who may declare upon oath that the voter is blind, cannot read the English language, or is, by reason of any physical disability other than intoxication, unable to cast a vote without assistance, shall, upon request, be assisted by the two officers as provided in section 49.89, or alternatively

by any other person the voter may select in casting the vote, except that the voter shall not select a person standing for election on the ballot. The officers, or the person selected by the voter, shall cast the vote of the voter requiring assistance, and shall thereafter give no information regarding the vote cast. If any elector because of a disability cannot enter the building where the polling place for the elector's precinct of residence is located, the two officers shall take a paper ballot to the vehicle occupied by the elector with a disability and allow the elector to cast the ballot in the vehicle. Ballots cast by voters with disabilities shall be deposited in the regular ballot box, or inserted in the tabulating device, and counted in the usual manner.

2. A person standing for election on the ballot before a voter commits a violation of section 49.88 by occupying the voting booth with the voter.

Sec. 24. EFFECTIVE DATE. This division of this Act takes effect January 1, 2026.

DIVISION IV

COUNTY HOSPITAL BOARD OF TRUSTEES

Sec. 25. Section 347.9, subsection 3, Code 2025, is amended by striking the subsection.

Sec. 26. RETROACTIVE APPLICABILITY. This division of this Act applies retroactively to persons elected to a county hospital board of trustees on or after January 1, 2024.

DIVISION V

POLITICAL PARTY — DEFINITION

Sec. 27. Section 43.2, subsection 1, paragraph b, Code 2025, is amended to read as follows:

b. "Political party" shall mean a party which, at the last three preceding general ~~election~~ elections, cast for its candidate for president of the United States or for governor, as the case may be, at least two percent of the total vote cast for all candidates for that office at ~~that election~~ those elections. It shall be the responsibility of the state commissioner to determine whether any organization claiming to be a political party qualifies as such under this paragraph.

Sec. 28. Section 43.63, subsection 1, Code 2025, is amended to read as follows:

1. Upon receipt of the abstracts of votes from the counties, the secretary of state shall immediately open the envelopes and canvass the results for all offices. The secretary of state shall invite to attend the canvass one representative from each political party which, at the last three preceding general ~~election~~ elections, cast for its candidate for president of the United States or for governor, as the case may be, at least two percent of the total vote cast for all candidates for that office at ~~that election~~ those elections, as determined by the secretary of state. The secretary of state shall notify the chairperson of each political party of the time of the canvass. However, the presence of a representative from a political party is not necessary for the canvass to proceed.

Sec. 29. Section 50.36, subsection 2, Code 2025, is amended to read as follows:

2. The secretary of state shall invite to attend the canvass one representative from each political party which, at the last three preceding general ~~election~~ elections, cast for its candidate for president of the United States or for governor, as the case may be, at least two percent of the total vote cast for all candidates for that office at ~~that election~~ those elections, as determined by the secretary of state. The secretary of state shall notify the chairperson of each political party of the time of the canvass. However, the presence of a representative from a political party is not necessary for the canvass to proceed.

Sec. 30. Section 68B.2, subsection 13, paragraph b, subparagraph (1), Code 2025, is amended to read as follows:

(1) Officials and employees of a political party organized in the state of Iowa representing more than two percent of the total votes cast for governor in the last three preceding general ~~election~~ elections, but only when representing the political party in an official capacity.

DIVISION VI

NOMINATION FILING DEADLINES

Sec. 31. Section 44.4, subsection 1, Code 2025, is amended to read as follows:

1. ~~a-~~ Nominations made pursuant to this chapter and chapter 45 which are required to be filed in the office of the

state commissioner shall be filed in that office not more than ninety-nine days nor later than 5:00 p.m. on the ~~eighty-first day before the~~ first Tuesday after the first Monday in June in each even-numbered year. Nominations made for a special election called pursuant to section 69.14 shall be filed by 5:00 p.m. not less than twenty-five days before the date of an election called upon at least forty days' notice and not less than fourteen days before the date of an election called upon at least eighteen days' notice. Nominations made for a special election called pursuant to section 69.14A shall be filed by 5:00 p.m. not less than twenty-five days before the date of the election. Nominations made pursuant to this chapter and chapter 45 which are required to be filed in the office of the commissioner shall be filed in that office not more than ninety-two days nor later than 5:00 p.m. on the ~~seventy-fourth day before the~~ first Tuesday after the first Monday in June in each even-numbered year. Nominations made pursuant to this chapter or chapter 45 for city office shall be filed not more than seventy-two days nor later than 5:00 p.m. on the forty-seventh day before the city election with the county commissioner of elections responsible under section 47.2 for conducting elections held for the city, who shall process them as provided by law.

~~b. Notwithstanding paragraph "a", nominations for president and vice president of the United States shall be filed in the office of the state commissioner not more than ninety-nine days nor later than 5:00 p.m. on the eighty-first day before the date of the general election to be held in November.~~

Sec. 32. Section 44.4, subsection 2, paragraph a, subparagraphs (1) and (2), Code 2025, are amended to read as follows:

(1) Those filed with the state commissioner, not ~~less~~ later than ~~seventy-four~~ seven days ~~before~~ after the first Tuesday after the first Monday in June in each even-numbered year, ~~or for certificates of nomination filed under subsection 1, paragraph "b", not less than seventy-four days before the date of the election.~~

(2) Those filed with the commissioner, not ~~less~~ later than ~~sixty-seven~~ seven days ~~before~~ after the first Tuesday after

the first Monday in June in each even-numbered year, except as provided in subparagraph (3).

Sec. 33. Section 44.9, subsection 1, Code 2025, is amended to read as follows:

1. In the office of the state commissioner, at least eighty-one days before the date of the election, ~~or for withdrawals of nominations filed under section 44.4, subsection 1, paragraph "b",~~ at least seventy-six days before the date of election.

Sec. 34. Section 44.11, Code 2025, is amended to read as follows:

44.11 Vacancies filled.

If a candidate named under this chapter withdraws or dies before the deadline established in section 44.9, declines a nomination, or if a certificate of nomination is held insufficient or inoperative by the officer with whom it is required to be filed, or in case any objection made to a certificate of nomination, or to the eligibility of any candidate named in the certificate, is sustained by the board appointed to determine such questions, the vacancy or vacancies may be filled by the convention, or caucus, or in such manner as such convention or caucus has previously provided. The vacancy or vacancies shall be filled not less than seventy-six days before the election in the case of nominations required to be filed with the state commissioner ~~or not less than seventy-one days for nominations filed under section 44.4, subsection 1, paragraph "b",~~ not less than sixty-nine days before the election in the case of nominations required to be filed with the commissioner, not less than forty-two days before the election in the case of nominations required to be filed in the office of the school board secretary, and not less than forty-two days before the election in the case of nominations required to be filed with the commissioner for city elections.

DIVISION VII

AFFIDAVITS OF CANDIDACY

Sec. 35. Section 43.18, Code 2025, is amended by adding the following new subsection:

NEW SUBSECTION. 10. A statement that the candidate is aware

that by filing this affidavit, the candidate is ineligible to appear on the same ballot for the same office other than as a candidate for the political party indicated on the affidavit.

Sec. 36. Section 43.67, subsection 2, Code 2025, is amended by adding the following new paragraph:

NEW PARAGRAPH. *j.* A statement that the candidate is aware that by filing this affidavit, the candidate is ineligible to appear on the same ballot for the same office other than as a candidate for the political party indicated on the affidavit.

Sec. 37. Section 44.3, subsection 2, Code 2025, is amended by adding the following new paragraph:

NEW PARAGRAPH. *j.* A statement that the candidate is aware that by filing this affidavit, the candidate is ineligible to appear on the same ballot for the same office other than as a candidate for the nonparty political organization indicated on the affidavit.

Sec. 38. Section 45.3, Code 2025, is amended by adding the following new subsection:

NEW SUBSECTION. 10. A statement that the candidate is aware that by filing this affidavit, the candidate is ineligible to appear on the same ballot for the same office other than as a candidate nominated by petition.

DIVISION VIII

VOTER REGISTRATION

Sec. 39. Section 47.7, subsection 2, Code 2025, is amended to read as follows:

2. *a.* ~~On or before January 1, 2006, the~~ The state registrar of voters shall implement in a uniform and nondiscriminatory manner, a single, uniform, official, centralized, interactive computerized statewide voter registration file defined, maintained, and administered at the state level that contains the name and registration information of every legally registered voter in the state and assigns a unique identifier to each legally registered voter in the state. The state voter registration system shall be coordinated with other agency databases within the state, including, but not limited to, state department of transportation driver's license records, judicial records of convicted felons and persons declared incompetent to vote, and department of health and human

services records of deceased persons.

b. ~~On or after January 1, 2007,~~ a A county shall not establish or maintain a voter registration system separate from the state voter registration system. Each county shall provide to the state registrar the names, voter registration information, and voting history of each registered voter in the county in the form required by the state registrar.

c. A state or local election official may obtain immediate electronic access to the information contained in the computerized voter registration file. All voter registration information obtained by a local election official shall be electronically entered into the computerized voter registration file on an expedited basis at the time the information is provided to the local election official. The state registrar shall provide such support as may be required to enable local election officials to electronically enter the information into the computerized voter registration file on an expedited basis. The list generated from the computerized file shall serve as the official voter registration list for the conduct of all elections for federal office in the state.

d. The state registrar shall prescribe by rule the procedures for access to the state voter registration file, including all of the following:

(1) Access protocols for adding, changing, or deleting information from the state voter registration file.

(2) Training requirements for all state voter registration file users.

(3) Technology safeguards, including county information technology network requirements, necessary to access the state voter registration file.

(4) Breach incident response requirements and protocols on all matters related to elections.

e. The state registrar may rescind access to the statewide voter registration file from a user who is not in compliance with the prescribed rules.

f. ~~{1}~~ The state registrar shall, in the first quarter of each calendar year, conduct a verification of all voters in the statewide voter registration file, which shall include cross-referencing the records in the statewide voter

registration file with similar records maintained by other states. The state registrar of voters shall cancel the registration of a voter found to be ineligible pursuant to section 48A.30. The state registrar shall submit a report to the general assembly by April 30 of each year regarding the number of voter registrations canceled pursuant to this paragraph. The state registrar shall also publish this report on the internet site of the state registrar.

~~(2)~~ g. The state registrar may contract with a third-party vendor, including state and federal government agencies and private entities, to develop or provide a program to allow the state registrar to verify the status of records in the statewide voter registration file and identify ineligible voters on an ongoing basis.

h. The state registrar may adopt rules pursuant to chapter 17A for the use of federal and other state agency sources of information. The state registrar and county commissioners of elections may use those sources of information for voter registration file maintenance.

i. The department of transportation shall transmit to the state registrar a list of each person seventeen years of age or older in the state who has submitted documentation indicating that the person is not a citizen of the United States.

Sec. 40. Section 48A.10A, subsections 1 and 2, Code 2025, are amended to read as follows:

1. The state registrar shall compare lists of persons who are registered to vote with the department of transportation's driver's license ~~and files~~, nonoperator's identification card files, and noncitizen identification files, and shall, on an initial basis, issue a voter identification card to each active, registered voter whose name does not appear in the department of transportation's files. The voter identification card shall include the name of the registered voter, a signature line above which the registered voter shall sign the voter identification card, the registered voter's identification number assigned to the voter pursuant to section 47.7, subsection 2, an additional four-digit personal identification number assigned by the state commissioner, and the times during which polling places will be open on election

days.

2. The commissioner shall issue voter identification cards on an ongoing basis as prescribed by the state registrar. The commissioner shall, as a part of the voter acknowledgment process required under sections 48A.26 and 48A.26A, issue a voter identification card to a registered voter under this subsection at the time of registration or update to registration if the registered voter's name does not appear in the department of transportation's driver's license, ~~or~~ nonoperator's identification card, or noncitizen identification files. A registered voter whose name appears in the department of transportation's driver's license, ~~or~~ nonoperator's identification card, or noncitizen identification files shall not be issued a voter identification card pursuant to this section.

Sec. 41. Section 48A.25A, Code 2025, is amended by adding the following new subsection:

NEW SUBSECTION. 2A. A voter registration record shall be designated as unconfirmed status if the registrant self-reports to be a noncitizen on the voter registration form and signs the portion of the form affirming the person's United States citizenship.

Sec. 42. Section 48A.30, subsection 1, Code 2025, is amended by adding the following new paragraph:

NEW PARAGRAPH. *h.* The registered voter submits documentation that indicates that the registered voter is not a citizen of the United States or reports to a state or federal agency that the registered voter is not a citizen of the United States.

Sec. 43. Section 48A.30, subsection 2, Code 2025, is amended to read as follows:

2. When a registration is canceled pursuant to subsection 1, paragraph "*d*", "*e*", ~~or~~ "*g*", or "*h*", the commissioner shall send a notice of the cancellation to the registered voter.

Sec. 44. Section 48A.37, subsection 2, Code 2025, is amended to read as follows:

2. Electronic records shall include a status code designating whether the records are active, inactive, incomplete, pending, unconfirmed, or canceled.

a. Inactive records are records of registered voters to whom notices have been sent pursuant to section 48A.28, and who have not returned the card or otherwise responded to the notice, and those records have been designated inactive pursuant to section 48A.29. Inactive records are also records of registered voters to whom notices have been sent pursuant to section 48A.26A and who have not responded to the notice. Incomplete records are records missing required information pursuant to section 48A.11, subsection 8. Pending records are records of applicants whose applications have not been verified pursuant to section 48A.25A. Unconfirmed records are records of registered voters about whom the state registrar or county commissioner has received information from a reliable source indicating that the registered voter is not qualified. Canceled records are records that have been canceled pursuant to section 48A.30. All other records are active records.

b. An inactive record shall be made active when the registered voter requests an absentee ballot, votes at an election, registers again, or reports a change of name, address, telephone number, or political party or organization affiliation. An incomplete record shall be made active when a completed application is received from the applicant and verified pursuant to section 48A.25A. A pending record shall be made active upon verification or upon the voter providing identification pursuant to section 48A.8. An unconfirmed record shall be made active upon the registered voter providing evidence that the registered voter is qualified.

Sec. 45. Section 49.77, subsection 1, paragraph a, Code 2025, is amended to read as follows:

a. Any person desiring to vote shall sign a voter's declaration provided by the officials, in substantially the following form:

VOTER'S DECLARATION
OF ELIGIBILITY

I do solemnly swear or affirm that I am a resident of the precinct, ward or township, city of, county of, Iowa. I am a citizen of the United States.

I am a registered voter. I was born on the day of (month) (year). I have not voted and will not

vote in any other precinct in said election.

I understand that any false statement in this declaration is a criminal offense punishable as provided by law.

.....

Signature of Voter

.....

Address

.....

Telephone (optional)

Approved:

.....

Board Member

Sec. 46. Section 49.80, subsection 2, paragraph a, Code 2025, is amended by adding the following new subparagraph:

NEW SUBPARAGRAPH. (5) The person's citizenship status.

Sec. 47. Section 50.22, subsection 2, Code 2025, is amended to read as follows:

2. The decision to count or reject each ballot shall be made upon the basis of the information given on the envelope containing the provisional ballot, the evidence concerning the challenge, the registration and the returned receipts of registration. Ballots submitted to the board pursuant to section 49.78 or 49.81 that are not cured by the deadline provided in section 49.81, subsection 6, shall be rejected.

DIVISION IX

ELECTION MISCONDUCT

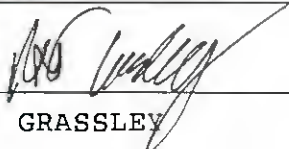
Sec. 48. Section 39A.7, Code 2025, is amended to read as follows:

39A.7 Election misconduct — investigation.

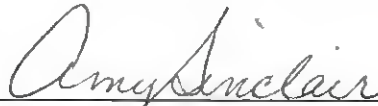
1. The ~~attorney general~~ county sheriff, or other law enforcement agency with jurisdiction, shall investigate allegations of election misconduct reported to the attorney general. Election misconduct by an election official shall also be investigated for prosecution under chapter 721.

2. Upon the completion of an investigation required by this section, the ~~attorney general~~ county sheriff, or other law enforcement agency with jurisdiction, shall submit the results of the investigation, including the report from the law enforcement agency, to the attorney general and the state

commissioner, and the attorney general shall explain whether the attorney general will pursue charges. Any information that is requested by or in the possession of the state commissioner pursuant to this chapter remains a confidential record pursuant to section 22.7, subsection 5.

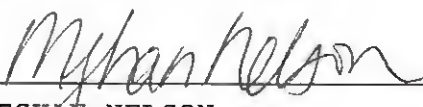

PAT GRASSLEY

Speaker of the House

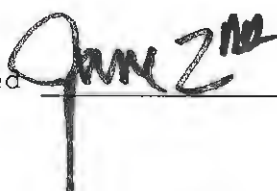

AMY SINCLAIR

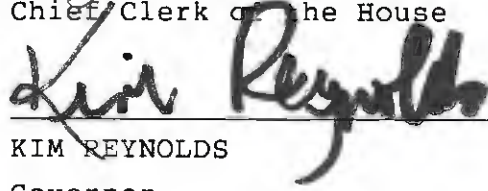
President of the Senate

I hereby certify that this bill originated in the House and is known as House File 954, Ninety-first General Assembly.


MEGHAN NELSON

Chief Clerk of the House

Approved , 2025


KIM REYNOLDS

Governor